



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety
Administration**

November 02, 2021

1200 New Jersey Avenue, SE
Washington, DC 20590

DOT-SP 21144
(FIRST REVISION)

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: (See individual authorization letter)
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of certain materials containing low quantities of explosive substances that have not been examined and approved in accordance with § 173.56(b). This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in the development of this special permit only considered the hazards and risks associated with the transportation in commerce.
 - c. This permit may only be used for transport of materials from facilities operated under the jurisdiction or purview of the United States Department of Energy.
 - d. Unless otherwise stated herein, this special permit consists of the special permit authorization letter issued to the grantee together with this document.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.56(b) in that the liquid mixtures have not been examined and approved prior to transport.
5. BASIS: This special permit is based on the application of Consolidated Nuclear Security LLC dated September 27, 2021, submitted in accordance with § 107.105 and the public proceeding thereon.

6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
These liquid mixtures are not regulated as Class 1 explosives*	As appropriate	As appropriate	As appropriate

*It is the responsibility of the shipper to determine whether the mixtures meet the definition of any other hazard class in accordance with the Hazardous Materials Regulations.

7. SAFETY CONTROL MEASURES:

a. The relief offered in this special permit is only valid for liquid mixtures that meet the following conditions:

- (1) Contain ≤ 300 ppm, by mass, explosive substance;
- (2) The explosive substance possesses a critical diameter equal or greater to PETN (0.35 mm); and
- (3) Limited to a maximum quantity of 55 gallons (208 L) per outer packaging, and a maximum quantity of 3,025 gallons (11,450 L) per shipment.

b. This special permit is only valid for Research and Development, laboratory work, and operations that generate the liquid mixtures.

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modification or change is made to the package and it is reoffered for transportation in conformance with this special permit and the HMR.

b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

c. When Column (9B) of the § 172.101 Hazardous Materials Table indicates that a hazardous material is "Forbidden", that hazardous material may not be offered for transportation or transported aboard aircraft.

- d. The maximum quantity of hazardous material in a package that may be offered for transportation or transported aboard cargo-only aircraft may not exceed that quantity prescribed for the material in Column (9B) of the § 172.101 Hazardous Materials Table.
 - e. Liquid mixtures that meet the definition of one or more hazard classes must be prepared for transport and transported in accordance with the requirements of the HMR.
9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle and cargo-only aircraft (see paragraph 8.c. for restrictions).
10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each aircraft or motor vehicle used to transport packages covered by this special permit. The shipper must furnish a copy of this special permit to the air carrier before or at the time the shipment is tendered.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.

Each “Hazmat employee”, as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)—“The Hazardous Materials Safety and Security Reauthorization Act of 2005” (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term “exemption” to “special permit” and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this

special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:

A handwritten signature in blue ink, appearing to read "William Schoonover", is written over a faint circular stamp.

for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-13, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at <https://www.phmsa.dot.gov/approvals-and-permits/hazmat/special-permits-search>. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: KLEM/ae